# Harris County District Court

Cause No. 2024-CV-0017

Amber Perry, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

## Plaintiff's Original Petition

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| **Filed:** | July 31, 2024 |
| **Plaintiff's counsel:** | David Young, Sullivan & Palmer LLP |

PARTIES

Plaintiff Amber Perry is an individual residing in Texas who was the driver of a vehicle involved in the collision described below.

Defendant is an automobile insurance company authorized to transact insurance business in the State of Texas. Defendant issued the automobile liability policy that provided coverage to the at-fault driver and may be served through its registered agent for sevrice of process.

FACTS

On January 16, 2024, Plaintiff was lawfully stopped in traffic on a public roadway in Conroe, Texas, waiting for the vehicle ahead to proceed. While Plaintiff's vehicle was stopped, the insured driver's vehicle struck the rear of Plaintiff's vehicle with considerable force, causing a rear-end collision. Plaintiff did nothing to cause or contribute to the collision.

Following the impact, Plaintiff's head struck the interior of the vehicle, and Plaintiff was transported for medical evaluation. Plaintiff was subsequently diagnosed with a concussion. Plaintiff reported the claim to Defendant promptly and provided the information and documentation Defendant requested. Defendant has not paid the claim in an amount sufficient to compensate Plaintiff for losses.

NEGLIGENCE

The insured driver owed a duty to Plaintiff to operate the vehicle with reasonable care, to maintain a proper lookout, to control speed, and to keep a safe distance from vehicles ahead. The insured driver breached that duty by failing to stop in time and striking Plaintiff's stopped vehicle. Defendant, as the liability insurer, is responsible under the policy and Texas law for damages its inusred is legally obligated to pay. Defendant further owed Plaintiff duties of good faith and fair dealing in investigating and evaluating the claim, and Defendant's handling of the claim, including unreasonable delay and undervaluation, constitutes unfair claim settlement practices under the Texas Insurance Code.

DAMAGES

As a direct and proximate result of the collision, Plaintiff has suffered a concussion, along with headaches, dizziness, and related symptoms, requiring medical treatment and time away from ordinary activities. Plaintiff has incurred medical expenses, lost wages, and physical pain and mental anguish, and will likely continue to incur such losses in the future. Plaintiff seeks actual damages, statutory damages, and attorney's fees as permitted by law. Plaintiff therefore demands judgment against Defendant in the amount of $248,000.00, together with pre-judgment and post-judgment interest, costs of court, and such other relief to which Plaintiff may be entitled.